

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

R. Belligan, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: June 17, 2026 TIME: 9:00 & 9:01 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)

IN-PERSON APPEARANCES: Department 13 is a fully open courtroom conducting in-person hearings on the days it has scheduled matters. The Court **strongly** encourages **in-person** appearances for any **contested** law-and-motion matter.

REMOTE APPEARANCES: Remote appearance is governed by Civil Local Rule 5 and General Local Rule 9. Department 13 uses UDC as its remote platform. Please click on this link if you need to appear remotely, and then scroll down to click the link for Department 13:

<https://santaclara.courts.ca.gov/online-services/remote-hearings>

The Court **strongly** encourages in-person appearance, but if appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not allowed absent exceptional circumstances. (Civil Local Rule 5.B.)

TELEPHONIC APPEARANCE IS PROHIBITED, unless the Court grants an exception. (Civil Local Rule 5.A.) CourtCall is no longer available.

RECORDING IS PROHIBITED: State and local court rules prohibit recording court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

COURT REPORTERS ARE NOT PROVIDED: If any party wishes to have a court reporter, the appropriate forms and process can be found here:

https://www.scsccourt.org/general_info/court_reporters.shtml.

SCHEDULING MOTION HEARINGS: Go to <https://reservations.scsccourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) to reserve a hearing date for your motion *before* you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

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LINE #	CASE #	CASE TITLE	RULING
LINE 1	22CV406020	John Nellis vs John Vaughan et al	Motion for Protective Order Ctrl Click (or scroll down) on Line 1 for tentative ruling.
LINE 2	24CV443012	LVNV FUNDING LLC as assignee of U.S. Bank, N.A. vs LUIS SANTOS	Motion: Set Aside Dismissal & Enter Judgment Plaintiff moves the Court for an order setting aside and vacating its prior order of dismissal and for entry of judgment in favor of Plaintiff and against Defendant in the sum of \$10,005.08. Defendant has not opposed the motion. (<i>Sexton v. Super Ct.</i> (1997) 58 Cal.App.4th 1403, 1410 [“[T]he failure to file an opposition creates an inference that the motion ... is meritorious.”].) Plaintiff’s unopposed motion is GRANTED. Plaintiff shall prepare and submit the final order and proposed judgment, accompanied by the necessary Forms EFS-020, within 10 days of the date of the hearing.
LINE 3	24CV451955	Daniel Chavez, II vs California Fair Services Authority et al	Motion to Compel OFF CALENDAR. Moving party has withdrawn the motion.

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LINE #	CASE #	CASE TITLE	RULING
LINE 4	24CV453671	JOHN SANTOS vs FORD MOTOR COMPANY et al	Motion: Summary Judgment/Adjudication Ctrl Click (or scroll down) on Line 4 for tentative ruling.
LINE 5	25CV470803	Ellen Cleary vs Jeffrey Draper et al	Hearing: Demurrer Ctrl Click (or scroll down) on Line 5 for tentative ruling.
LINE 6	25CV475209	Td Bank Usa, N.a. vs Minh Tran	Motion: Admissions Deemed Admitted Notice is proper. The Court has received no opposition from Defendant. “[T]he failure to file an opposition creates an inference that the motion or demurrer is meritorious.” (<i>Sexton v. Super Ct.</i> (1997) 58 Cal.App.4th 1403, 1410.) Good cause appearing, the motion is GRANTED. The truth of all specified facts in the Request for Admissions, Set One, shall be deemed admitted. Plaintiff to prepare a final order that repeats the admissions to be admitted verbatim, accompanied by the necessary Form EFS-020, within 10 days of the date of the hearing.

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LINE #	CASE #	CASE TITLE	RULING
LINE 7	26CV485690	CITY OF CAMPBELL, a California municipal corporation vs Tiffany Corey et al	Motion for Appointment of Receiver The Court’s tentative ruling is to grant the unopposed motion on the terms described in the 2/17/2026, Notice of Motion, including “Authorizing Court Receiver to secure funding for the receivership estate through the issuance of receiver’s certificates that may be recorded as super-priority liens on the Subject Property.” However, if moving party desires that the Court adjust the requested relief in accord with the 5/27/2026, Supplemental Declaration, moving party must appear to explain the Court’s authority to do so. If moving party chooses not to appear, then moving party shall prepare and submit a final proposed order consistent with the 2/17/2026, Notice of Motion, accompanied by the necessary Form EFS-020, within 10 days of the date of the hearing.
LINE 8	26CV488582	Fabiola Romero vs Olivia Rohlfing et al	Motion: Strike Ctrl Click (or scroll down) on Line 8 for tentative ruling.

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LINE #	CASE #	CASE TITLE	RULING
		9:01 CALENDAR	
9:01 LINE 1	22CV398906	Marzieh Abdolyousefi et al vs Mojtaba Taiebat et al	Motion to Withdraw as Attorney Counsel Tsivyan and Defendant Taibat shall appear in person (physically present) in Department 13 for argument on the motion to withdraw and to allow for <i>in camera</i> proceedings on the motion as may be necessary.
9:01 LINE 2	25CV472684	EDGEWOOD SC LLC vs RAJ GAUTAM et al	Order of Examination The Court sees no proof of service of the notice and Order to Appear. Parties to appear for examination if notice is proper, otherwise the matter will go off calendar.

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Calendar Line 1

Case Name: *John Nellis v. Santa Clara Valley Transportation Authority, et al.*

Case No.: 22CV406020

Defendant John Vaughan (“Mr. Vaughan”) seeks a protective order limiting the scope of discovery regarding Plaintiff’s deposition notice and second request for production served on Mr. Vaughan. Defendants have advised that Mr. Vaughn passed away on April 24, 2026, while this motion was pending before the Court. Although Plaintiff has been advised of Mr. Vaughn’s passing, Plaintiff has not substituted any other party into the action, has not withdrawn the discovery that is the subject of the motion, has not withdrawn the motion, and has not opposed the motion.

Mr. Vaughan’s motion for a protective order is GRANTED, hereby quashing the deposition notice and request for production of documents, noticed for May 1, 2026, and the second set of requests for production of documents, with responses due on May 5, 2026.

Subject to this protective order, the discovery stay granted by the Court’s order filed April 30, 2026 is otherwise hereby LIFTED.

Moving party to prepare the final order, accompanied by the necessary Forms EFS-020, within 10 days of the date of the hearing.

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Calendar Line 4

Case Name: *John Vincent Santos v. Ford Motor Company, et al.*

Case No.: 24CV453671

Before the Court is Defendant Ford Motor Company's ("Defendant" or "Ford") motion for summary adjudication in its favor and against Plaintiff John Vincent Santos ("Plaintiff"). Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling as follows:

I. BACKGROUND & FORD'S UNDISPUTED MATERIAL FACTS

This is an action for violations of the Song-Beverly Warranty Act ("Song-Beverly" or the "Act") (Civ. Code, §§ 1790 et seq.). Plaintiff alleges that he purchased a vehicle manufactured and/or distributed by Ford (the "Vehicle") and that various defects manifested during the applicable warranty period, including but not limited to engine defects. (Complaint, ¶¶ 12, 13.) Based on these alleged violations, he initiated the instant action with the filing of the Complaint on December 10, 2024, asserting claims for: (1) violation of Civil Code § 1793.2, subd. (d); (2) violation of Civil Code § 1793.2, subd. (b); (3) violation of Civil Code § 1793.2, subd. (a)(3); (4) breach of implied warranty of merchantability; (5) negligent repair; (6) fraudulent inducement-concealment.¹

According to the materials submitted by Ford in support of its motion, on October 19, 2022, Plaintiff purchased the Vehicle, a new 2022 Ford Maverick. (Defendant's Separate Statement of Undisputed Material Facts in Support of Motion for Summary Adjudication ("UMF"), No. 1.) In his claim for fraud, Plaintiff alleges that the Vehicle's engine suffered from "one or more defects that can result in loss of power, stalling, engine running rough, engine misfires, failure or replacement of the engine" (the "Engine Defect") and that prior to the sale of the Vehicle, Ford "knew, or should have known, about the Engine Defect through its exclusive knowledge of non-public, internal data about the Engine Defect" and actively concealed its existence from Plaintiff and/or failed to disclose it to him. (UMF Nos. 3-5.)

On February 9, 2026, Ford propounded written discovery on Plaintiff which included special interrogatories and requests for production of documents and, in part, sought all facts, persons with information, and documents to support Plaintiff's fraud claim. (UMF No. 6.) Plaintiff served his written responses on March 13, 2026 and his 15-page document production on March 16, 2026. (UMF Nos. 7, 8.)

Defendant filed the instant motion for summary adjudication of the sixth cause of action on March 26, 2026. No opposition has been filed by Plaintiff.

II. ANALYSIS

A. Burden of Proof

¹ All claims are asserted against Ford, excluding the fifth for negligent repair, which was asserted against Will Tiesiera Ford Mercury. Plaintiff dismissed Will Tiesiera Ford Mercury from this action on May 12, 2025.

“A defendant seeking summary judgment [or adjudication] must show that at least one element of the plaintiff’s cause of action cannot be established, or that there is a complete defense to the cause of action ... The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue.” (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72 [internal citations omitted].)

“The ‘tried and true’ way for defendants to meet their burden of proof on summary judgment motions is to present affirmative evidence (declarations, etc.) negating, as a matter of law, an essential element of plaintiff’s claim.” (Weil & Brown, Cal. Prac. Guide; Civ. Proc. Before Trial (The Rutter Group 2014) ¶ 10:241, p. 10-104, citing *Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 334.) “The moving party’s declaration and evidence will be strictly construed in determining whether they negate (disprove) an essential element of plaintiff’s claim ‘in order to resolve any evidentiary doubts or ambiguities in plaintiff’s (opposing party’s) favor.’” (*Id.*, ¶ 10:241.20, p. 10-105, citing *Johnson v. American Standard, Inc.* (2008) 43 Cal.4th 56, 64.)

“Another way for a defendant to obtain summary judgment is to ‘show’ that an essential element of plaintiff’s claim cannot be established. Defendant does so by presenting evidence that plaintiff ‘does not possess and cannot reasonably obtain, needed evidence’ (because plaintiff must be allowed a reasonable opportunity to oppose the motion).” (*Id.*, ¶ 10:242, p. 10-105, citing *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854-855.) “Such evidence usually consists of admissions by plaintiff following extensive discovery to the effect that he or she has discovered nothing to support an essential element of the cause of action.” (*Id.*)

B. Fraudulent Inducement-Concealment (Sixth Cause of Action)

Ford asserts that it is entitled to summary adjudication of Plaintiff’s claim for fraud because he has no evidence that Ford had prior knowledge of any purported engine defect and concealed it from him

As a general matter, the elements of a claim for fraudulent inducement based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Marketing West, Inc. v. Sanyo Fisher (USA) Corp.* (1992) 6 Cal.App.4th 603, 612-613.)

To establish Plaintiff’s lack of evidence of Ford’s prior knowledge of an engine defect, Defendant submits Plaintiff’s responses to discovery, which it characterizes as “factually devoid.” When a defendant moves for summary judgment on the ground that a plaintiff has “no evidence” to establish an essential element of a cause of action, the defendant must support such a motion with discovery admissions or other admissible evidence following extensive discovery, showing that “plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (*Aguilar, supra*, 25 Cal.4th at pp. 854-855.) It is not enough for a moving defendant to show merely that a plaintiff currently “has no evidence” on a key element of the claim. (See *Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891, citing *Aguilar* [“the absence of

evidence to support a plaintiff's claim is insufficient to meet the moving defendant's initial burden of production. The defendant must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim.”].) “Such evidence may consist of the deposition testimony of the plaintiff's witnesses, the plaintiff's *factually devoid discovery responses*, or admissions by the plaintiff in deposition or in response to requests for admission that he or she has not discovered anything that supports an essential element of the cause of action.” (*Lona v. Citibank, N.A.* (2011) 202 Cal.App.4th 89, 110, emphasis added.)

Ford conducted written discovery in this matter, including propounding Special Interrogatories and Requests for Production of Documents. (UMF No. 6.) Plaintiff served responses to Ford's Special Interrogatories and produced 15 pages of documents in response to the Requests for Production, which consisted of the Retail Installment Sales Contract, one repair order from Will Tiesiera Ford dated November 20, 2023 (over one year after Plaintiff's purchase and relating to a replacement of the Vehicle's front axles), two vehicle registration cards - one from October 2024-October 2025 and one from October 2025-October 2026, Plaintiff's Certificate of Title, what appears to be a summary of Plaintiff's insurance coverage details, and an undated, online offer for the Subject Vehicle from CarMax. (UMF No. 16.)

In its discovery requests to Plaintiff, Ford asked for all facts, persons, and documents to support Plaintiff's Fraudulent Inducement-Concealment cause of action. (UMF Nos. 9-11.) As argued by Defendant, Plaintiff's responses are indeed devoid of facts, merely referring Ford to Plaintiff's Complaint² and document production. No facts are identified that indicate exclusive knowledge by Ford of the purported defects, no *specific* individuals are identified, and the documents produced by Plaintiff (see above) fail to show the same. (*Id.*) Plaintiff also responded to certain interrogatories that he was unable to completely respond because the information sought was not with his possession, custody, and/or control, and that he “require[d]” the deposition testimony and document production of Defendant's person most knowledgeable. (UMF No. 12.)

According to Ford, Plaintiff served a deposition notice for its corporate representative on March 17, 2025, which unilaterally set a deposition date without meeting and conferring with Ford as to the availability of the witness, or Ford's counsel. (UMF Nos. 14, 15.) Ford timely served its objection to the notice, setting forth its unavailability, but Plaintiff never followed up to meet and confer on alternative dates. (UMF No. 15.) Plaintiff cannot be rewarded for his lack of diligence in this regard, especially as he has not opposed Ford's motion.

The Court finds that the foregoing evidentiary showing is sufficient to meet Defendant's initial burden on this claim. Plaintiff has not filed an opposition and thus fails to establish the existence of a triable issue of material fact. Accordingly, Ford is entitled to summary adjudication of the sixth cause of action and its motion is GRANTED.

The July 16, 2026 Trial Assignment Hearing and the July 20, 2026 Jury Trial are VACATED.

² The Court notes that a party cannot rely on its own pleadings as a factual source to defeat summary judgment. (*Roman Iron Works v. Prudential Insurance Company* (1980) 104 Cal.App.3d 767, 775.)

Defendant shall prepare and submit the final order and proposed judgment, accompanied by the necessary Forms EFS-020, within 10 days of the date of the hearing.

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Calendar Line 5

Case Name: *Ellen Anne Cleary v. County of Santa Clara, et al.*

Case No.: 25CV470803

Before the Court is Defendants County of Santa Clara's (the "County"), Jeffrey Draper ("Draper"), Andrew Walker ("Walker"), and André Neto ("Neto") (collectively, "Defendants") demurrer to the First Amended Complaint ("FAC") filed by Plaintiff Ellen Anne Cleary ("Plaintiff").

This is an action for violations of the Fair Employment and Housing Act ("FEHA") as well as whistleblower retaliation. According to the allegations of the FAC, Plaintiff, a Jewish woman who actively practiced her faith throughout her employment, commenced her employment with the County as a Deputy Director on August 21, 2023. (FAC, ¶ 11.) She alleges that during the course of her employment, she was "subjected to recurring and/or ongoing harassment, discrimination, on her gender and religious orientation or creed that was similar in kind" and that the "atmosphere was encouraged, created and participated in by Plaintiff's supervisors," which included defendants Draper and Walker. (*Id.*, ¶ 12.) Plaintiff alleges that Draper "repeatedly brought up that she would be the first female Deputy Director, and that she could be raped or taken hostage merely because she was a woman," and repeatedly made comments about Plaintiff's perceived age, which he believed to be over 40. (*Ibid.*) Draper also engaged in harassing conduct towards Plaintiff that was based on her religious orientation. (FAC, ¶¶ 28-31.)

Almost immediately after starting work, Plaintiff began experiencing gender-based harassment at her job site from defendant Neto, a co-worker, which included him making "repeated, condescending, and demeaning comments to Plaintiff solely because she was a woman, saying things like "make me a sandwich," and engaged in insubordinate behavior such as refusing to do the work Plaintiff assigned to him and speaking over Plaintiff during an "All Hands" meeting where, among other things he said to those present that Plaintiff had a "cackle like Kamala Harris." (FAC, ¶ 13.) Neto's behavior made it very difficult for Plaintiff to perform her job and caused her a great deal of anxiety and discomfort. (*Ibid.*) Walker was aware of Neto's conduct, and it was "participated [in], encouraged, facilitated, and/or ratified" by Draper. (*Ibid.*)

Plaintiff first reported the gender-based harassment to Human Resources ("HR") personnel, some of whom had witnessed said harassment against Plaintiff. (FAC, ¶ 14.) Plaintiff subsequently reported the harassment to the County's Equal Opportunity Division ("EOD"), and the later, the EOD's Whistleblower Hotline. (*Id.*, ¶ 15.) The County ignored Plaintiff's initial complaint to the EOD, and she had to raise the issue again on eight separate occasions. (*Id.*, ¶ 16.) The County refused to investigate, offering various excuses for failing to do so. (*Id.*) The EOD eventually took steps to address Plaintiff's complaint when the Chief Operating Officer became involved, and the County "provided a written acknowledgment that defendant Neto's actions were violations of the County's Policy Against Discrimination, Harassment, and Retaliation." (*Id.*, ¶¶ 17-18.) Despite the County's acknowledgment of Neto's conduct, it allowed Neto to continue coming to work at the same location as Plaintiff. (*Id.*, 19.) The County's failure to place Neto on administrative leave culminated in a screaming fit by him towards Plaintiff and, subsequent to that, him approaching her husband with a razor in the work parking lot. (*Ibid.*) Plaintiff's reporting of the incident was ignored, with Plaintiff

being told that her husband was not an employee. (*Ibid.*) Draper and Walker were aware of Neto's conduct but did nothing to prevent it, and Draper actually "proceeded to fight to have Neto reinstated to work despite Plaintiff and the Director of Security and Labor Relations expressing concerns for Plaintiff's safety." (*Ibid.*)

Neto was belatedly put on administrative leave, but Draper repeatedly misinformed Plaintiff on his return-to-work status. (FAC, ¶ 20.) Neto later returned while he was supposed to be on leave (and before any investigation). Draper and Walker were assigned to investigate but refused to do so. (*Id.*)

The County also failed or refused to address additional harmful incidents directed towards Plaintiff, including her office window being smashed and surrounded by a suspended employee's family and Plaintiff's car having to be bomb checked due to the director of security's threat assessment. (FAC, ¶ 21.) Neto also violated the confidentiality of the EOD investigation. (*Ibid.*)

Plaintiff was systematically retaliated against by Defendants, particularly Draper, every time she reported conduct that violated the County's policies and the law. (FAC, ¶¶ 22, 23, 26, 27.) Once Draper became aware that Plaintiff had reported gender-based harassment, his actions towards her were even more openly hostile until her employment was terminated on August 30, 2024. (*Id.*, ¶ 24.) Plaintiff alleges that she was terminated for false and pretextual reasons. (*Id.*, ¶¶ 32-36.)

Based on the foregoing, Plaintiff initiated this action with the filing of the Complaint in July 2025, and filed the operative FAC on March 9, 2026, asserting the following causes of action: (1) gender and religious discrimination (against the County) and harassment and retaliation in violation of FEHA (against all defendants); (2) age discrimination in violation of FEHA (against the County and Draper); (3) breach of the covenant of good faith and fair dealing (against the County); (4) failure to prevent discrimination, harassment and retaliation in violation of FEHA (against the County); (5) retaliation in violation of Labor Code § 1102.5 (against the County); (6) retaliation in violation of Gov. Code, § 8547, et seq. (against the County); and (7) intentional infliction of emotional distress ("IIED") (against all defendants).

On April 9, 2026, Defendants filed the instant demurrer to the FAC and each of the claims asserted therein on the ground of failure to state facts sufficient to constitute a cause of action.³ (Code Civ. Proc., § 430.10, subd. (e).) Plaintiff opposes the motion.⁴

Defendants first assert that its demurrer to Plaintiff's first cause of action should be sustained for the following reasons: (1) supervisors cannot be held individually liable for discrimination or retaliation under FEHA; (2) Plaintiff's allegations do not amount to religious-based discrimination; and (3) Plaintiff fails to state a claim for harassment against Draper and Walker.

³ In the notice of motion, Defendants also state that they demurrer to the FAC on the ground of uncertainty. (Code Civ. Proc., § 430.10, subd. (f).) However, no argument is submitted in support of this ground, and therefore the demurrer on the ground of uncertainty is OVERRULED.

⁴ Defendant's request for judicial notice of Plaintiff's claim filed with the County is GRANTED. (Evid. Code, § 452, subds. (c) and (h).) The Court notes that it has not taken judicial notice of the truth of the contents of this claim. Plaintiff's request for judicial notice is also GRANTED. (Evid. Code, § 430.10, subds. (d) and (h).)

Defendants' first argument can easily be dispensed with. While Defendants are correct that individual supervisory employees cannot be held personally liable for discriminatory or retaliatory conduct under FEHA (see *Reno v. Baird* (1998) 18 Cal.4th 640, 647-655 (*Reno*), the contents of the first cause of action make clear that only the portion of the claim relating to harassment is being asserted against Draper and Walker. Further, even if this was not the case, i.e., it was not clear, the Court could not sustain Defendants' motion on this basis because a demurrer does not lie to only part of a cause of action. (See *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682 (*PH II, Inc.*).)

Turning to Defendants' second argument, to plead a prima facie case of religious discrimination, a plaintiff must allege facts that demonstrate: (1) he holds a "bona fide religious belief, the practice of which conflicted with an employment duty; (2) he informed the employer of that belief and conflict; and (3) the employer threatened the employee with or subjected him to discriminatory treatment, including discharge, because of an inability to fulfill the job requirements. (*E.E.O.C. v. AutoNation USA Corp.* (9th Cir. 2002) 52 Fed.App'x 327, 329.) Defendants assert that Plaintiff has failed to plead allegations which suggest a discriminatory motive on their part based on Plaintiff's religious creed. They explain that there are no allegations of discriminatory conduct or commentary by Walker or Neto centered on Plaintiff's religion, nor are there allegations that Draper was aware that she was Jewish, with Plaintiff merely setting forth a single comment allegedly made by him during a phone call that Jewish people were "greedy and sneaky." (FAC, ¶¶ 28-29.)

As stated above, Defendants cannot demur to only part of a cause of action, and because they have not challenged the *entirety* of the first cause of action as to the County (i.e., the retaliation portion), the Court cannot sustain the demurrer on this basis.

Finally, Defendants assert that Plaintiff's harassment claim fails as to Walker and Draper because "nearly all" of her allegations against them entail everyday personnel decisions that cannot form the basis for a harassment claim, and comments that allegedly occurred outside of that were not so severe as to alter the conditions of her employment or create an abusive work environment sufficient to support a claim for harassment cause of action. The Court does not find this argument persuasive. While Defendants are correct that personnel decisions "such as hiring and firing, job or project assignments, office or work station assignments, promotion or demotion, performance evaluations, the provision of support, the assignment or nonassignment of supervisory functions, deciding who will and who will not attend meetings, deciding who will be laid off, and the like, do not come within the meaning of harassment" (*Reno, supra*, 18 Cal.4th at 646-647), the Court believes that Plaintiff's allegations, when viewed in toto, establish a hostile work environment on the parts of Walker and Draper, including comments made to her by them and their failure to respond to her complaints or treatment by Neto.

Given the foregoing, Defendants' demurrer to the first cause of action on the ground of failure to state facts sufficient to constitute a cause of action is OVERRULED.

Defendants next argue that Plaintiff's fourth cause of action for failure to prevent discrimination and harassment fails because her preceding claims for retaliation, harassment and discrimination fail for the reasons set forth above. While it is true that a prerequisite to a finding of liability for the failure to take all reasonable steps is a finding that the plaintiff

actually suffered unlawful discrimination, harassment, or retaliation (see *Trujillo v. North County Transit Dist.* (1998) 63 Cal.App.4th 280, 282-283; see also *Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1021), as the Court has overruled Defendants' demurrer to the preceding claims for retaliation, harassment and discrimination, it follows that their demurrer to the fourth cause of action on the ground of failure to state facts sufficient to constitute a cause of action is also OVERRULED.

Next, Defendant maintains that Plaintiff cannot state a claim for age discrimination because she was not over the age of 40. Under FEHA, it is unlawful for an employer to discriminate against a person because of age. (Gov. Code, § 12940, subd. (a).) A plaintiff is in a protected class for purposes of an age discrimination lawsuit if he or she is 40 years of age or older. (Gov. Code, § 12926, subd. (b); *McCaskey v. California State Automobile Assn.* (2010) 189 Cal.App.4th 947, 978.) Plaintiff is admittedly *not* 40 years old but argues that she was *perceived* to be and discriminated against on that basis. But she cites no case authority which supports this theory of liability, only a publication from the California Civil Rights Department, which *itself* is devoid of any binding case support. In order to establish a prima facie case of age discrimination, a plaintiff *must* establish that he or she was 40 years of age or older at the time of the alleged adverse employment action was taken against the employee. (*Marquez v. City of Emeryville* (2000) 79 Cal.App.4th 1106, 1116.) In the absence of any authority to the contrary, Defendants' demurrer to the second cause of action on the ground of failure to state facts sufficient to constitute a cause of action is SUSTAINED WITHOUT LEAVE TO AMEND.

As for the third cause of action, Defendant contends that Plaintiff has not stated a claim for breach of the implied covenant of good faith and fair dealing because she was an at-will employee. The Court agrees.

Because the implied covenant of good faith and faith dealing cannot impose substantive duties or limits on the contracting parties beyond those incorporated in the specific terms of the employment agreement, terminating an at-will employee whose employment is not governed by contract generally *cannot* give rise to a valid claim for breach of the implied covenant. (See *Horn v. Cushman & Wakefield West, Inc.* (1999) 72 Cal.App.4th 798, 817-820.) While it is the case that, regardless of whether an employee is at will, an employer cannot violate the anti-discrimination/harassment/retaliation provisions of FEHA, "that does not mean FEHA imbues at-will employees with any contractual due process rights" or other contractual rights in connection with their employment. (See *Nakai v. Friendship House Assn. of American Indians, Inc.* (2017) 15 Cal.App.5th 32, 42.) Plaintiff's reliance on *Kuhn v. Department of Gen. Service* (1994) 22 Cal.App.4th 1627 (*Kuhn*) does not save her claim.

In *Kuhn*, there was no discussion of at-will status and its effect on the plaintiff's ability to state a claim for breach of the implied covenant and further, the case involved a decision to terminate an employee pursuant to a medical termination statute, Government Code section 19253.5, which created "terms and conditions" of employment that implied good faith and fair dealing—i.e., that the parties would follow the requirements of that statutorily defined reinstatement procedure for the plaintiff who was a probationary employee. (*Kuhn, supra*, 22 Cal.App.4th at p. 1637 [discussing Gov. Code §§ 19173, 19175.].) Here, Plaintiff identifies no similar statutory rights that would affect the basic presumption of at-will employment "that an employer may terminate its employees at will, for any or no reason." (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 350.) Accordingly, the Court finds that Plaintiff has not stated a

claim for breach of the implied covenant of good faith and fair dealing and Defendants' demurrer to the third cause of action on the ground of failure to state facts sufficient to constitute a cause of action is SUSTAINED WITHOUT LEAVE TO AMEND.

Defendants next assert that their demurrer to the sixth cause of action should be sustained because Government Code section 8547.8 does not apply to County employees. In her opposition, Plaintiff states her agreement to remove this claim from her pleading. Therefore, Defendant's demurrer is MOOT as to the sixth cause of action.

Defendant argues that Plaintiff's remaining whistleblower claim under Government Code section 1102.5 ("Section 1102.5") fails because it is untimely. According to Defendants, the claim Plaintiff submitted to the County to satisfy the claims presentation requirement of the Government Claims Act is untimely "as to the vast majority of the conduct alleged in the FAC," and there was no timely claim filed as to conduct occurring on or after August 19, 2024, the only time period in which unlawful conduct was still be actionable.

"Under the [Government Claims] Act [the "Act"], no person may sue a public entity or public employee for 'money or damages' unless a timely written claim has been presented to and denied by the public entity." (*County of Los Angeles v. Superior Court* (2005) 127 Cal.App.4th 1263, 1267.) In order to be timely, the claim generally must be presented to the particular entity within six months of accrual of the injury. (*A.M. v. Ventura Unified School Dist.* (2016) 3 Cal.App.5th 1252, 1257.) Absent an applicable exception, "failure to timely present a claim for money or damages to a public entity bars a plaintiff from filing suit against that entity bars a plaintiff from filing a lawsuit against that entity." (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1239.) "The complaint should allege the presentation and rejection of a claim in all actions to which the claims procedures apply. ... Failure to allege compliance with Tort Claims Act requirements is a ground for demurrer." (Van Alstyne, California Government Tort Liability Practice (4th ed. 2007) §5.5, p. 173 citing Govt. Code, §§ 905, 905.2, 945.4; §8:40, 432-433 citing *Chase v. State* (1977) 67 Cal.App.3d 808; *State v. Superior Court* (2004) 32 Cal.4th 1234, 1239.)

"Claims for personal injury must be presented not later than six months after the accrual of the cause of action ..." (*Willis v. City of Carlsbad* (2020) 48 Cal.App.5th 1104, 1118.) "Accrual for purposes of the Act is the date of accrual that would pertain under the statute of limitations applicable to a dispute between private litigants." (*Ibid.*) A plaintiff must then commence his or her lawsuit within six months of notice of rejection of the claim. (Gov. Code, §§ 913, 945.6; Code Civ. Proc., § 342; *Shirk v. Vista Unified School Dist.* (2007) 42 Cal.4th 201, 209.) "The failure to timely present a claim to the public entity bars the claimant from filing a lawsuit against that public entity." (*California Restaurant Management System v. City of San Diego* (2011) 195 Cal.App.4th 1581, 1591.)

According to Defendants, while Plaintiff contends she "timely delivered a government claims form" to the County (FAC ¶¶ 42, 48, 63, 79), documents that are properly subject to judicial notice establish that she submitted a government claim on February 19, 2025, which was rejected on March 21, 2025 based, in part, on untimeliness, as Plaintiff sought relief for events occurring more than six months prior. (Defendants' Request for Judicial Notice ("RJN"), Exhibits A and B.) Defendants continue that on August 7, 2025, Plaintiff applied to present a late claim pursuant to Government Code section 911.4, and the County rejected that application on August 12, 2025, with Plaintiff taking no further action. (RJN, Ex. C-D.) Thus,

Defendants urge, based on the February 19, 2025 submission date, only conduct allegedly occurring on or after August 19, 2024 (six months prior) is actionable, which means that to the extent Plaintiff's Section 1102.5 claim is predicated on her placement on administrative leave and/or any of the action/inaction taken by her supervisors or other County employees prior to August 19, 2024, there was no timely government claim filed, and the section 1102.5 claim must fail as to that time frame.

Defendants may well be correct that much of the conduct alleged in the Section 1102.5 claim is untimely but, once again, a demurrer does not lie to only part of a cause of action, and she *has* alleged conduct which falls within six months of the submission of her tort claim to the County, namely, her termination. Consequently, Defendants' demurrer to the fifth cause of action on the ground of failure to state facts sufficient to constitute a cause of action is **OVERRULED**.

Lastly, Defendants urge that their demurrer to Plaintiff's IIED claim should be sustained because (1) the County is immune from the claim, which is also time-barred; and (2) Plaintiff fails to state sufficient facts.

In order to state a claim for intentional infliction of emotional distress ('IIED'), a plaintiff must plead: "(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct." (*Plotnik v. Meihaus* (2012) 208 Cal.App.4th 1590, 1609, internal citations and quotations omitted.) In order for conduct to be considered outrageous for the purpose of tort liability, it "must be so extreme as to exceed all bounds of that usually tolerated in a civilized society." (*Trerice v. Blue Cross of California* (1989) 209 Cal.App.3d 878, 883.)

This claim is asserted against all defendants. Defendants are correct that under the Government Claims Act (Gov. Code, § 810 et seq.), there is *no* common law tort liability for public entities in California; such liability *must* be based on statute. (See Gov. Code, § 815, subd. (a); *Miklosy v. Regents of University of California* (2008) 44 Cal.4th 876, 899.) However, as Plaintiff responds, courts have recognized that there is not blanket immunity for a public entity on an IIED claim; Government Code section 815.2, subdivision (a), provides that "[a] public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative." "This section imposes upon public entities vicarious liability for the tortious acts and omissions of their employees." (Legislative Committee Comment to Gov. Code, §815.2; see also *Hoff v. Vacaville Unified School District* (1998) 19 Cal.4th 925, 932 (*Hoff*)). Thus, an employee of a public entity is liable for his torts to the same extent as a private person and the public entity is vicariously liable for any injury which its employee causes to the same extent as a private employer. (See Gov. Code, §§ 820, subd. (a), 815, 815.2, subd. (a); *Hoff* at 932.) Here, Defendants fail to demonstrate that the individual defendants are immune from liability for their own actions committed in the course and scope of their employment, and thus the Court will not sustain the demurrer on this basis.

As for timeliness, Plaintiff's IIED claim is based in part on her termination which, as stated above, is not untimely. Therefore, the Court also will not sustain the demurrer on this basis.

With regard to Defendants' remaining argument, the Court believes that Plaintiff has sufficiently pleaded extreme and outrageous conduct by the individual defendants when the FAC is considered in total, including but not limited to allegations concerning someone throwing a rock through Plaintiff's window (FAC ¶21), Plaintiff's husband being approached by defendant Neto while wielding a razor (FAC, ¶ 19) and Draper's reckless disregard for the danger that Plaintiff was placed in and apparent amusement of the same (FAC, ¶¶ 21, 84). Consequently, Defendants' demurrer to the seventh cause of action on the ground of failure to state facts sufficient to constitute a cause of action is **OVERRULED**.

The Court will prepare the final order.

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Calendar Line 8

Case Name: *Romero v. Rohlfing, et al.*

Case No.: 26CV488582

Before the Court is Defendants Olivia Nell Rohlfing and Scott Rohlfing's (collectively, "Defendants") motion to strike portions of the Complaint filed by Plaintiff Fabiola Alejandra Romero ("Plaintiff"). Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling as follows:

This is an action for damages arising out of a motor vehicle accident which occurred on March 5, 2024, on Interstate 280 in San Jose. Plaintiff initiated this action with the filing of a Judicial Form Complaint on March 5, 2026, asserting a single claim for "motor vehicle." On April 20, 2026, Defendants filed the instant motion to strike Plaintiff's request for punitive damages on the ground that she has not pleaded sufficient facts to establish an entitlement to recover such damages. Plaintiff opposes the motion.

Defendants' motion to strike is GRANTED WITH 10 DAYS' LEAVE TO AMEND. Where nonintentional torts involve conduct performed without intent to harm, punitive damages may be assessed 'when the conduct constitutes conscious disregard of the rights or safety of others.' '[A] conscious disregard of the safety of others may [thus] constitute malice within the meaning of section 3294 of the Civil Code. In order to justify an award of punitive damages on this basis, the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.' Consequently, to establish malice, 'it is not sufficient to show only that the defendant's conduct was negligent, grossly negligent, or even reckless.'" (*Bell v. Sharp Cabrillo Hosp.* (1989) 212 Cal.App.3d 1034, 1044 (*Bell*)).

Here, no facts are pleaded which establish that Defendants acted maliciously or in any other way which would entitle Plaintiff to recover punitive damages under Civil Code section 3294. In her opposition, Plaintiff asserts that she sufficiently pleads such facts by alleging that Defendant operated a motor vehicle while using a cell phone in violation of California law. But the version of the Complaint filed with the Court contains no such allegations and even if it did, the Court is not necessarily persuaded that the simple allegation that the vehicle operator was using a cell phone at the time of the incident is adequate to establish malicious or despicable conduct.

The Court will prepare the final order.

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